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Center for Science in the Public Interest: California Health Department Rejects Warnings for Synthetic Dyes

November 2, 2024 | Targeted News Service (USA)
Section: Public Policy Groups | 513 Words
OpenURL Link

WASHINGTON, Nov. 2 -- The Center for Science in the Public Interest issued the following agency statement on Nov. 1, 2024:

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CDHP ignores sister agency's assessment of impact on children's behavior

Statement of CSPI Principal Scientist for Additives and Supplements Thomas Galligan

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Two days ago, as children anticipated a night of trick or treating and the collection of bundles of artificially colored candies, the California Department of Public Health (CDPH) denied a 2022 CSPI petition requesting a warning label on foods containing synthetic food dyes, effectively deciding against helping parents and caretakers choose safer Halloween treats.

In doing so, CDPH completely disregarded the comprehensive, authoritative assessment of the evidence completed by its sister agency the California's Office of Environmental Health Hazard Assessment (OEHHA), part of the California EPA. Contrary to CDPH, OEHHA's 2021 report concluded that synthetic dyes "can cause or exacerbate neurobehavioral problems in some children." That 300-plus-page report represents the most rigorous assessment regarding the effects of dyes on behavior in children undertaken to date. The report painstakingly documented its methodology and how it was informed by scientific experts, peer review, and public input, and based its conclusion on 27 human clinical trials as well as animal and test tube studies.

OEHHA recommended in its report that, "At a minimum, in the short-term, the neurobehavioral effects of synthetic food dyes in children should be acknowledged and steps taken to reduce exposure to these dyes in children." A warning label is a simple, effective way to achieve both of these goals, but OEHHA was powerless to do so as CDPH is the state agency with authority to regulate food and color additives.

In stark contrast to OEHHA's impressive assessment, CDPH's scant 3-page denial stated that the department had conducted its own assessment but failed to include any details of that investigation or even to mention OEHHA's 2021 report. CDPH did not identify the experts involved in its decision, its methodology, studies, evidence, or analysis used to come to its divergent conclusion. The lack of transparency calls into serious question the quality of the evaluation performed by CDPH. It is unclear why CDPH chose to duplicate effort rather than build on OEHHA's work.

This petition would have brought California closer in line with the European Union, where a warning label has been required on foods containing certain synthetic food dyes since 2010.

In denying our petition, CDPH directly disregarded the recommendations made by OEHHA and deprives consumers of the information they need to protect themselves and their children.

Ironically, the petition denial comes less than a month after the California legislature acted to protect school children from a hazard CDPH believes need not be warned about. On September 28, Gov. Gavin Newsom signed into law the California School Food Safety Act, authored by Assemblymember Jesse Gabriel, that will preclude the

provision of food dye-containing foods in California school meals. In the face of CDPH's adverse decision, we are especially appreciative of Asm. Gabriel and Gov. Newsom for following the science and protecting children from these unsafe and unnecessary color additives.

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Original text here: https://www.cspinet.org/statement/california-health-department-rejects-warnings-synthetic-dyes

[Category: Science]

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- **Citation (apa Style)**
  Center for Science in the Public Interest: California Health Department Rejects Warnings for Synthetic Dyes. (2024, November 2). *Targeted News Service (USA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19C98B7748F5ABB0.